
Terms of Confidentiality — ChronoHive Evaluation

Terms of Confidentiality

CONFIDENTIAL — PROPRIETARY

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****DRAFT — REQUIRES REVIEW BY LEGAL COUNSEL BEFORE USE.****

This document is a template. It is not legal advice and creates no attorney-client relationship. Have counsel review and adapt it before any evaluator executes it.

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1. Parties and purpose

1.1. These Terms of Confidentiality ("TOC") are between **Layer1Labs Silicon Inc.** ("Layer1Labs") and the individual and organization identified in the acceptance token executing these terms (together, the "Evaluator").

1.2. Layer1Labs is making its ChronoHive storage-admission evaluation package available to the Evaluator — including the eval API, its outputs, documentation, and any related materials (the "Eval Materials") — solely so the Evaluator can evaluate ChronoHive's storage-admission capability (the "Evaluation Purpose").

2. Definitions

2.1. **Confidential Information** means the Eval Materials and everything the Evaluator learns from them that is not publicly known, including: (a) the behavior, performance characteristics, and outputs of the eval API; (b) the contents of the eval repository, documentation, and example code; (c) any benchmark or measurement results the Evaluator produces using the Eval Materials; and (d) the API keys, signing keys, and acceptance tokens used in the evaluation.

2.2. Confidential Information does not include information that the Evaluator can show (i) was already publicly known through no fault of the Evaluator, (ii) was independently developed without use of the Eval Materials, or (iii) was rightfully received from a third party with no duty of confidentiality.

3. Evaluation license

3.1. Layer1Labs grants the Evaluator a limited, non-exclusive, non-transferable, revocable license to use the Eval Materials **solely for the Evaluation Purpose**, for the duration of the evaluation credentials issued to the Evaluator.

3.2. The Evaluator shall not: (a) use the Eval Materials in production or in any commercial product or service; (b) copy, redistribute, or sublicense the Eval Materials; (c) reverse-engineer them except to the extent necessary for the Evaluation Purpose; or (d) remove or alter any copyright, confidentiality, or honesty notices.

4. Confidentiality obligations

4.1. The Evaluator shall keep all Confidential Information strictly confidential, using at least the same care it uses for its own confidential information and no less than reasonable care.

4.2. The Evaluator shall not disclose Confidential Information to any third party, and shall limit internal access to those employees and contractors who need it for the Evaluation Purpose and who are bound by confidentiality obligations at least as protective as these terms.

4.3. The Evaluator may use Confidential Information — including measurement results — internally for the Evaluation Purpose. **Public disclosure of evaluation results** (including publication, marketing, or benchmark claims) requires Layer1Labs' prior written consent.

4.4. If the Evaluator is compelled by law to disclose Confidential Information, it shall give Layer1Labs prompt notice and cooperate to limit the disclosure.

5. Cryptographic execution

5.1. This TOC may be executed cryptographically. An individual executes this TOC by:

(a) obtaining the canonical text of this TOC and its SHA-256 digest as published by Layer1Labs (via the eval API's **GET /v1/toc** endpoint or the canonical **TOC.md** in the eval repository); (b) generating an ed25519 signing key pair; and (c) producing a digital signature over the canonical acceptance message that binds the TOC digest, the signer's API key identifier, and the signer's name, organization, and contact email, and submitting the resulting acceptance token to the eval API's **POST /v1/toc/accept** endpoint.

5.2. An acceptance token whose signature the eval API verifies against the pinned TOC digest **constitutes execution of this TOC by the identified signer as of the token's timestamp**, with the same force and effect as a handwritten signature.

5.3. The signer warrants that they are authorized to bind the organization named in the acceptance token, and that the identity information in the token is true and complete. The signing key is the signer's proof of execution; the signer shall keep its private key confidential.

5.4. Layer1Labs maintains the verified acceptance tokens as its record of execution. The Evaluator may request a copy of its acceptance record at any time.

6. Term

6.1. These terms take effect upon execution and the confidentiality obligations survive for **three (3) years** from the date of the last disclosure of Confidential Information.

7. Intellectual property

7.1. Nothing in these terms transfers any intellectual property right. Layer1Labs retains all right, title, and interest in the Eval Materials and in ChronoHive. No license is granted except as expressly stated in Section 3.

8. No warranty; honesty of the evaluation

8.1. The Eval Materials are provided "as is" without warranty of any kind. Layer1Labs makes no representation that the evaluation simulates any specific hardware or production environment.

8.2. For the avoidance of doubt, and as stated in the API documentation: the storage backend, the contention model, and the storage API surface used in the evaluation are **simulated**; admission decisions are produced by the ChronoHive Runtime kernel. Evaluation numbers are simulation outcomes, not hardware measurements.

9. Return of materials

9.1. Upon Layer1Labs' request, or when the evaluation credentials expire, the Evaluator shall promptly stop using the Eval Materials and delete or return them, except for one archival copy retained solely to comply with legal obligations.

10. General

10.1. These terms are the entire agreement on their subject matter. Amendments must be in writing signed by both parties.

10.2. If any provision is held unenforceable, the rest remain in effect.

10.3. Governing law: **[to be completed by counsel]**.

10.4. Neither party may assign these terms without the other's written consent, except in connection with a merger or sale of substantially all of its assets.

*Executed cryptographically per Section 5. The eval API activates an API key only after verifying a valid acceptance token — see **docs/API.md** ("Executing the TOC") and **tools/sign_toc.py**.*

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